

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 938

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO PUBLIC ASSISTANCE; AMENDING SECTION 56-275, IDAHO CODE, TO REVISE THE DEFINITIONS OF CANDY AND SODA; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 56-275, Idaho Code, be, and the same is hereby amended to read as follows:

56-275. WAIVER TO ENHANCE NUTRITION IN THE SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM. (1) For the purposes of this section:

(a) "Candy" means a shelf-stable preparation of sugar, honey, or other ~~natural or artificial~~ nutritive or nonnutritive sweeteners in combination with chocolate, fruits, nuts, or other ingredients or flavorings, in the form of bars, drops, or pieces. "Candy" shall not include any preparation ~~containing flour and shall require no~~ requiring refrigeration ~~or any of the following:~~

(i) Baked goods such as muffins;

(ii) Baking ingredients such as chocolate melting wafers, toffee bits, chocolate, etc.;

(iii) Savory or nonsweet snacks such as pretzels and crackers;

(iv) Fruit snacks made with real fruit, including fruit puree and fruit juice concentrate, such as dried mango, apple chips, and fruit leathers;

(v) Trail mix and products that list peanuts or tree nuts as the first ingredient;

(vi) Granola bars, breakfast bars, snack bars, protein bars, meal replacement bars, and weight loss bars; or

(vii) Items used as ingredients in baking such as sugar, honey, and baking chocolate.

(b) "Soda" means any nonalcoholic beverage that contains natural or artificial sweeteners. "Soda" does not include any beverages that:

(i) contain ~~contain~~ milk or milk substitutes ~~;~~ ;

(ii) that are ~~are~~ greater than fifty percent (50%) vegetable juice or fruit juice by volume ~~;~~ ;

(iii) or that require ~~Require~~ preparation before consumption, such as powders or concentrates ~~;~~ ;

(iv) Are sports drinks used for hydration;

(v) Are used as an oral rehydration electrolyte solution formulated to prevent or treat dehydration; or

(vi) Are manufactured as a source of necessary nutrition or dietary supplement.

(2) The director of the department of health and welfare shall request a waiver from the United States department of agriculture to exclude candy and

1 soda from the definition of eligible foods under 7 CFR 271.2. If such waiver
2 is granted, then the director shall prohibit the purchase of candy and soda
3 with benefits provided through the supplemental nutrition assistance pro-
4 gram. If no such waiver is granted, then the director shall request such a
5 waiver annually until such waiver is granted.

6 SECTION 2. An emergency existing therefor, which emergency is hereby
7 declared to exist, this act shall be in full force and effect on and after
8 July 1, 2026.